4062

Executive Order

Under authority of section 2 of the Act of Congress approved May 31, 1924, the following regulations are promulgated:

REGULATIONS

In execution of the provisions of section 6 of an Act of Congress approved June 10, 1922, entitled "An Act to readjust the pay and allowances of the commissioned and enlisted personnel of the Army, Navy, Marine Corps, Coast Guard, Coast and Geodetic Survey, and Public Health Service," 42 Stat. 625, as amended by an Act of Congress approved May 31, 1924, Public No. 171, hereinafter referred to as "this Act," the following regulations are hereby promulgated and made applicable to the several services concerned, including adjunct forces thereof.

I. *Definitions.*—(a) The term "on active duty or entitled to active duty pay," shall be construed as describing the status of any officer on the active list at all times and any other officer when required to perform duty in accordance with law for which he is entitled to active duty pay from the United States: *Provided*, That any such officer be not absent from duty under conditions which under the laws governing the particular service concerned would prevent him from receiving full pay.

(b)—The term "dependents" shall include at all times and in all places a lawful wife and unmarried children under twenty-one years of age. It shall also include the mother of the officer, provided she is in fact dependent upon him for her chief support.

(c)—The term "field duty" shall be construed to mean service, under orders, with troops operating against an enemy, actual or potential.

(d)—The term "sea duty" shall be construed to mean service at sea by an officer in a vessel employed by authority of law under orders requiring him to report for duty on board said vessel or assigning him to duty in command of vessels or as a member of the staff of such commander: *Provided*, That the officer concerned is not during the same period required to render service on shore of a character determined by the Department concerned to be paramount to the duty which he is required to render at sea.

(e)—The term "permanent station" as used in this Act shall be construed to mean the place on shore where an officer is assigned to duty, or the home yard or the home port of a vessel on board which an officer is required to perform duty, under orders in each case which do not in terms provide for the termination thereof; and any station on shore or any receiving ship where an officer in fact occupies with his dependents public quarters assigned to him without charge shall also be deemed during such occupancy to be his permanent station within the meaning of this Act.

(f)—The term "competent superior authority" shall be construed to mean the officer required by regulations of the Department concerned to assign public quarters.

(g)—The term "number of rooms provided by law for an officer of his rank" shall be deemed to mean the number of rooms prescribed in the Act of March 2, 1907, 34 Stat. 1169, for an officer of the rank in which he is commissioned or to which his rank or position is assimilated by law for purposes of quarters in kind, as follows: Second lieutenants, two rooms; first lieutenants, three rooms; captains, four rooms; majors, five rooms; lieutenant-colonels, six rooms; colonels, seven rooms; brigadier generals, eight rooms; major generals, nine rooms; lieutenant-generals, ten rooms.

II. *Assignment of quarters.*—(a) The assignment of quarters to an officer shall consist of the designation in accordance with regulations of the Department concerned of quarters controlled by the Government for occupancy without charge by the officer and his dependents, if any.

(b)—Every officer permanently stationed at a post, yard or station where public quarters are available, will be assigned thereat as quarters the number of rooms prescribed by law for an officer of his rank, or a less number of rooms determined by competent superior authority, in accordance with regulations of the Department concerned, to be adequate in the particular case for the occupancy of the officer and his dependents, if any; which regulations shall provide among other things that quarters voluntarily occupied by an officer with his dependents shall be conclusively presumed to be adequate and shall be assigned accordingly: *Provided*, That this regulation shall not be construed as prohibiting the assignment as quarters to an officer of a dwelling having a number of rooms greater than that provided by law for an officer of his rank where the arrangement of rooms is such that separation into smaller quarters is impracticable.

(c)—No officer, who, when adequate quarters are not available for assignment to him at his permanent station, is permitted or required personally to occupy inadequate quarters at said station, shall so occupy more than one room and a bath.

(d)—Any unassigned quarters at a post, yard, or station may, with the permission of competent superior authority and so long as not needed for assignment to officers on permanent duty thereat, be occupied by officers not permanently stationed thereat, but no officer unaccompanied by dependents will be permitted to occupy as quarters at a post, yard, or station other than his permanent station more than one room and a bath.

III. *Payments.*—(a) Except as otherwise provided in these regulations, the money allowance for rental of quarters shall be paid by disbursing officers of the Army, Navy, Marine Corps, Coast Guard, Coast and Geodetic Survey, and Public Health Service to all officers entitled thereto who are paid their salaries by such disbursing officers respectively, such payments of money allowance for rental of quarters to be made periodically upon submission of evidence necessary to substantiate the payee's right to such money allowance.

(b)—An officer who has no dependents shall not be paid a rental allowance for any period during which he is on field or sea duty.

(c)—No officer shall be paid a rental allowance for any period during which he is assigned as quarters at his permanent station the number of rooms provided by law for an officer of his rank, or a less number of rooms which have been determined in accordance with these regulations to be adequate in the particular case.

(d)—Rental allowance that has accrued under this Act since July 1, 1922, shall be paid by such disbursing officers as may be designated by the head of the Department concerned or, if deemed necessary by him, claims therefor shall be referred to the General Accounting Office for settlement.

CALVIN COOLIDGE

THE WHITE HOUSE,
August 13, 1924.

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GOVERNMENT PRINTING OFFICE